ADMINISTRATIVE REVIEW TRIBUNAL
BRISBANE REGISTRY

2023/3361
2023/3363
2023/4494

VIDA REID
Applicant

SIMON REID
Applicant

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

SUPPLEMENTARY SUBMISSIONS OF THE RESPONDENT

Introduction and Overview

1. By email on 8 March 2026, the applicant in each of these three related applications lodged further submissions with the Tribunal ahead of the case management hearing listed for 20 March 2026. In their further submissions:

    1.1. Ms Vida Reid confirmed that she would no longer be pressing her application to have her proceeding stayed;

    1.2. Ms Vida Reid confirmed that she still seeks to have her proceeding severed from those of Mr Simon Reid and Forward Focused Group Pty Ltd (**FFG**);

    1.3. Mr Simon Reid pressed an application to have his proceeding severed from those of Ms Vida Reid and FFG;

    1.4. Mr Simon Reid, as director of FFG, pressed an application to have FFG's proceeding delayed until after the proceedings of Ms Vida Reid and Mr Simon Reid have been heard; and

    1.5. both Ms Vida Reid and Mr Simon Reid foreshadowed requests to file updated Statements of Facts, Issues and Contentions (**SFIC**) and requested that the respondent provide them with additional documents prior to the filing of these SFICs.

2. By email dated 17 March 2026, the Tribunal wrote to the parties noting that Ms Vida Reid was no longer proceeding with her stay application and seeking the views of the parties as to whether the hearing on Friday 20 March 2026 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.

3. The Respondent is of the view that it would be appropriate for the Tribunal to determine the application to sever the joint proceedings on the papers and lodges these submissions solely to respond to the applicants' new submissions. They supplement, and should be read alongside, the respondent's previous submissions filed on 17 September 2025.

Severance of proceedings

4. The respondent continues to rely primarily on its submissions dated 17 September 2025 on the issue of severance.[1] The following submissions are made by way of response and for completeness only.

5. Ms Vida Reid's new submissions state that her application raises issues that are distinct from those raised in Mr Simon Reid's and FFG's proceedings, and which warrant severance from the other proceedings.[2] In particular, she has foreshadowed submissions relating to:

    5.1. whether the original notice of intention in relation to Ms Vida Reid's banning order was validly served in time to give her an opportunity to properly respond; and

    5.2. whether, during the Respondent's internal review of Ms Vida Reid's banning order, Ms Reid had a proper opportunity to respond to the delegate's proposal to amend the banning order.[3]

6. The respondent submits that these submissions are misconceived. The review before the Tribunal is not a judicial review, but rather a merits review. Ms Vida Reid will be provided the opportunity to provide a response relating to the banning order at the final hearing. The respondent submits that this does not provide a basis for Ms Vida Reid's proceeding to be severed from that of Mr Simon Reid or FFG.

7. Ms Vida Reid further states that her application should not be delayed by interlocutory disputes arising in the related matters.[4] It is not clear what interlocutory disputes are referred to by this submission, given that the main interlocutory dispute to date has been Ms Reid's own stay application (which she has now abandoned). In any event, for the reasons set out at paragraphs 8 and 9 below, the respondent submits that this submission should not be accepted.

8. Mr Simon Reid's submissions similarly state that his matter should not be delayed by interlocutory matters in the related matters.[5] The respondent, similarly, submits that this submission should not be accepted. As noted above, Ms Vida Reid has now abandoned her stay application. FFG has to date raised no separate interlocutory issues for consideration. As such, there are no further interlocutory matters on foot which could

1 Paragraphs [52]-[59] of the 17 September 2025 submissions.

2 Applicant's Short Directions Submissions of Vida Reid dated 8 March 2026 (**VR Submissions**), [11].

3 VR Submissions, [4]-[7].

4 VR Submissions, [12].

5 Applicant's Short Directions Submissions of Simon Reid dated 8 March 2026 (**SR Submissions**), [17]-[18].

result in additional delays to the hearing of Mr Simon Reid's proceeding, rendering severance unnecessary.

9. Finally, FFG's submissions request that its matter be deferred until after the proceedings against Ms Vida Reid and Mr Simon Reid have been dealt with.[6] For the reasons set out in the Respondent's 17 September 2025 submissions (in particular at paragraphs [55] and [58] of those submissions), the respondent submits such a deferral is not appropriate.

10. For these reasons (and those in the respondent's 17 September 2025 submissions), the applications by each of the three applicants to sever their respective proceedings from those of the other applicants should be dismissed.

Document Requests

11. Ms Vida Reid and Mr Simon Reid have each made disclosure requests in their submissions.[7] They each propose to put on a Statement of Facts, Issues and Conditions, or amended submissions, after the receipt of the requested documents.[8]

12. Subject to paragraphs [15] and [16] below, the respondent submits that these disclosure requests are unnecessary.

13. On 13 June 2024, the respondent filed with the Tribunal's predecessor body a tender bundle collating all of the documents in its possession or under its control which it said were relevant to the decision of the Tribunal, in accordance with its statutory obligations.[9] The majority of the documents now sought by Ms Vida Reid and, (subject to paragraph 15 below), Mr Simon Reid can be found in that tender bundle. The respondent does not propose to separately produce any documents which have previously been produced as part of the tender bundle.

14. On 26 July 2024, Deputy President Mischin of the Administrative Appeals Tribunal made non-disclosure and non-publication orders under sections 37(1AE) and 35(4) of the then-AAT Act in relation to a document previously filed with the Tribunal entitled 'Tactical Intelligence Report – Project Archer' and dated 18 August 2022. Consistent with the above orders, the respondent has not and does not intend to provide a copy of this Tactical Intelligence Report to the applicants.

15. Notwithstanding the above, it has recently come to the respondent's attention that the following documents relating to Mr Simon Reid were not included in the previous tender bundle:

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6 Applicant's Position Statement of Forward Focused Group Pty Ltd (**FFG Statement**), [8]-[11].

7 VR Submissions, [15]; SR Submissions, [19].

8 VR Submissions, [16]; SR Submissions, [19].

9 *Administrative Appeals Tribunal Act 1975* (Cth) s 37; replaced by *Administrative Review Tribunal Act 2024* (Cth) s 23.

15.1. Notice and Statement of Reasons for the original banning order against Simon Reid;

15.2. Briefing note EC22-002103;

15.3. Briefing note EC22-002429;

15.4. Briefing note EC22-002521;

15.5. Letter from Tom & Co Legal to the respondent dated 22 November 2022;

15.6. Letter from Tom & Co Legal to the respondent dated 30 November 2022;

15.7. Letter from Tom & Co Legal to the respondent dated 7 December 2022;

15.8. Statement of Cassandra Burke dated 16 February 2023 with certain attachments.

16. Given the length of time which has passed since the filing of the original tender bundle and to ensure that the documents set out at paragraph 14 are included, the respondent proposes to file and serve an updated tender bundle with the Tribunal and applicants. The respondent submits that this should address the concerns raised in Mr Simon Reid's submissions.

17. For the reasons set out above at paragraphs 4 to 16, coupled with the submissions lodged on 17 September 2025, the respondent submits that these applications should not be severed but rather that they should proceed as joint applications and be set down for substantive hearing as soon as possible.

Timetabling Orders Sought

18. In the event that the Tribunal determines that the applications will proceed as a joint application (and not be severed), the respondent proposes the following, or similar, timetabling orders be made.

18.1. by no later than 10 April 2026, the respondent to file an updated tender bundle consisting of all documents required to be produced under section 23 of the *Administrative Review Tribunal Act 2024* (Cth) (except for the Tactical Intelligence document referred to in Deputy President Mischin's orders of 26 July 2024);

18.2. by no later than 1 May 2026, the applicants to each file an updated Statement of Facts, Issues and Contentions and any further evidence on which they propose to rely;

18.3. by no later than 22 May 2026, the respondent to file its Statement of Facts, Issues and Contentions and any further evidence on which it proposes to rely;

18.4. by no later than 5 June 2026, the applicants to each file their responses (if any);

18.5. the matters to then be set down for hearing at the first available date after 5 June 2026, with an estimated listing of 2 days.

Date: 19 March 2026



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Karlie Dickinson
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent